



CHAPTER ccxxiv.

An Act for authorising the Urban District Council of Buxton to acquire from the Most Noble Spencer Compton Duke of Devonshire K.G. the mineral water baths of Buxton and to maintain and improve the same and for other purposes. A.D. 1904.
[15th August 1904.]

WHEREAS the town of Buxton in the county of Derby is a health resort renowned for its mineral waters and baths and is comprised in the district of Buxton (in this Act called "the district") which is an urban district within the meaning of the Local Government Act 1894 and is under the control and management of the Buxton Urban District Council (in this Act called "the Council"):

And whereas by an agreement made the first day of March one thousand eight hundred and ninety-two between the Most Noble Spencer Compton Duke of Devonshire K.G. (in this Act called "the Duke") of the one part and the local board for the district of Buxton in the county of Derby (the predecessors of the Council) of the other part confirmed by the Buxton Local Board Act 1892 (in this Act called "the Act of 1892") it was agreed that upon the terms and subject to the conditions in the said agreement mentioned the Duke would within eighteen months from the passing of the Act of 1892 at his own cost erect on a site in the said agreement described a new pump room according to a ground plan then already submitted to the said board and would convey the same in fee simple to the said board for and on behalf of the inhabitants of the district:

And whereas the said new pump room was duly erected and conveyed to the said board as aforesaid:

A.D. 1904.
—

And whereas by the Act of 1892 it was provided that on the conveyance to the said board of the said new pump room a pump room in the said Act referred to as the existing pump room and the warm mineral springs from which the mineral waters used in the said existing pump room and the then existing public well or pump in the district called or known as St. Ann's Well or Pump and in the baths belonging to the Duke called or known as the Natural Baths were then obtained should subject to the provisions of the said Act be and remain vested in the Duke his heirs and assigns or other the owners for the time being of the said mineral springs freed and discharged from all rights and claims (if any) of the said board of the public and of all bodies and persons whomsoever (other than the Duke his heirs and assigns or other the said owners):

And whereas by the Act of 1892 it was further provided that the said board might hold and maintain the said new pump room and use the same for the purpose of supplying water from the said mineral springs for drinking and for no other purpose and provisions were made for the fitting up carrying on and management of the said new pump room:

And whereas by the Act of 1892 provision was made for the furnishing by the Duke his heirs and assigns or other the owners for the time being of the said mineral springs to the said new pump room and the said public pump of a supply of water naturally rising from the said mineral springs:

And whereas the mineral water baths of Buxton (including the baths in the Act of 1892 referred to as being called or known as the Natural Baths) have been in the possession of the Duke and his ancestors for many years past and with a view to transferring to the Council the mineral water baths and undertaking of the Duke an agreement (herein-after called "the scheduled agreement") a copy of which is set forth in the First Schedule to this Act has been made between the Duke and the Council for the purchase of the said baths and premises by the Council in consideration of the Council securing to the Duke the payment of a yearly rentcharge of two thousand four hundred and twenty-six pounds payable by half-yearly payments for a period of sixty years and upon certain other conditions including options to purchase certain adjoining properties for the purpose of extending the said baths and it is expedient that the scheduled agreement be confirmed and made valid and binding on the parties as by this Act provided:

A.D. 1904.

And whereas it is expedient that the Council should be authorised to hold maintain extend and improve the said baths and to acquire land and provide additional baths of any description with all necessary appliances and to supply mineral water and to advertise their mineral baths and springs and other attractions of the district in manner in this Act provided :

And whereas by an agreement made the seventeenth day of June one thousand eight hundred and ninety-two between George Drewry as agent for and on behalf of the Duke of the one part and William Henry Robertson on behalf of the committee of management of the Devonshire Hospital at Buxton of the other part (a copy of which is set forth in the Second Schedule to this Act) the Duke agreed to let and the said committee agreed to take at the rent and upon the terms in the said agreement set forth the hospital natural bath situate at Buxton in the yard between the Old Hall Hotel and the square and partially underground and it was provided that if the tenancy should be determined at any time by the Duke he should give and convey to the said committee or as they should direct free from expense for the purpose of the said hospital certain lands in the said agreement described and should also pay to the said committee the sum of five hundred pounds to be expended in the construction of a new bath or baths on the said lands and by clause 5 of the said agreement it was provided that the Duke should give to the said committee for the purposes of their hospital natural bath the overflow natural mineral water from the baths of the Duke known respectively (at the date of the said agreement) as the gentlemen's two-shilling baths and the ladies' large baths from six o'clock in the afternoon until midnight daily :

And whereas by an agreement dated the 11th day of May 1904 and made between Francis Drewry as agent for the Duke of the one part and William Stevenson on behalf of the said committee of the other part (a copy of which is set forth in the Second Schedule to this Act) and expressed to be supplemental to the said agreement dated the 17th day of June 1892 it was agreed that the Duke should give to the said committee for the purposes of the hospital hot baths the overflow natural mineral water from the bath used (at the date of the said agreement) as the gentlemen's two-shilling bath and the bath used at the same date as the ladies' large bath from six o'clock in the forenoon until midnight daily and should also give to the said committee for the purposes of the hospital natural bath a supply of natural mineral water from the

A D. 1904. — springs underneath the said gentlemen's two-shilling bath and should also give to the said committee for the purposes of the hospital drinking well a supply of natural mineral drinking water from the springs near the shop used (at the date of the said agreement) as a gentlemen's hairdressers shop And that the Duke should also keep in good repair and working order the pipes by which the said several supplies were conveyed to the hospital hot baths the hospital natural bath and the hospital drinking well respectively and that the said committee should upon demand repay to the Duke all the cost and expense of renewing and keeping the said pipes in good repair and condition as aforesaid And by clause 9 of the said agreement it was provided that the said agreement should be deemed to be in substitution for clause 5 of the said agreement of the 17th day of June 1892 :

And whereas the said tenancy of the said hospital natural bath has not been determined by the Duke and the said committee receive from the Duke the various supplies of natural mineral water specified in the last-mentioned agreement :

And whereas it is expedient that provision should be made as in this Act contained for safeguarding the interests of the said hospital and for relieving the Duke from the obligations under the said agreements and for transferring to the Council those obligations and also for relieving the Duke from the obligations under the Act of 1892 of supplying mineral water for the purposes of the public pump and the new pump room herein-before mentioned :

And whereas it is expedient that the Council should be authorised to borrow money as in this Act provided :

And whereas it is expedient that the Council should be authorised to make byelaws for regulating the conduct and charges of persons licensed by them as luggage porters light porters public messengers or commissionaires and that the provisions of the Act of 1892 with regard to recreation grounds should be modified :

And whereas an absolute majority of the whole number of the Council at a meeting held on the thirtieth day of December one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Buxton Advertiser a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate of the district :

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

And whereas such resolution was published twice in the said A.D. 1904.
Buxton Advertiser a newspaper published and circulating in the
district and has received the approval of the Local Government
Board:

And whereas the propriety of the promotion of the Bill for this
Act was confirmed by an absolute majority of the whole number of
the Council at a further special meeting held in pursuance of a
similar notice on the nineteenth day of February one thousand
nine hundred and four being not less than fourteen days after the
deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for
this Act the requirements contained in the First Schedule of the
Borough Funds Act 1903 have been observed:

And whereas the purposes of this Act cannot be effected
without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows: —

1. This Act may be cited as the Buxton Urban District Council Short title.
Act 1904.

2. The Lands Clauses Acts except the provisions thereof with Incorporation of Acts.
respect to the purchase and taking of lands otherwise than by
agreement and except section 127 of the Lands Clauses Consoli-
dation Act 1845 are hereby incorporated with this Act.

3. The several words and expressions to which by the Acts Interpreta-
tion.
wholly or partially incorporated with this Act meanings are
assigned shall in this Act have the same respective meanings
unless there is something in the subject or context repugnant to
such construction Provided that in the Acts wholly or partially
incorporated with this Act for the purposes of this Act—

The expression “the promoters of the undertaking” means
the Council:

And in this Act unless the subject or context otherwise
require—

“The district” means the urban district of Buxton;

“The Council” means the urban district council of the district;

A.D. 1904.

- “The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district ;
- “The Act of 1892” means the Buxton Local Board Act 1892 ;
- “The Act of 1902” means the Buxton Urban District Council Water Act 1902 ;
- “Statutory securities” means securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being an annuity rentcharge or security transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Council ;
- “The Duke” means the Most Noble Spencer Compton Duke of Devonshire and (where the context so requires or admits) includes his heirs executors administrators devisees and assigns ;
- “The pump room” means the pump room erected and conveyed to the local board for the district of Buxton in pursuance of the agreement a copy of which is set forth in the schedule to the Act of 1892 and the appurtenances thereto belonging ;
- “The public pump” means the existing public well or pump in the district called or known as St. Ann’s Well or Pump and any public pump which may at any time be substituted therefor ;
- “The mineral water baths” means the premises described or referred to in the agreement between the Duke and the Council scheduled to and confirmed by this Act and thereby agreed to be sold by the Duke to the Council ;
- “The mineral baths undertaking” means the mineral water bath undertaking to be established and carried on by the Council under the provisions of this Act and includes the mineral water baths and any extensions alterations and improvements thereof and additions thereto ;
- “The scheduled agreement” means the agreement dated the twenty-fourth day of June 1904 made between the Duke

[4 EDW. 7.] *Buxton Urban District Council* [Ch. CCXXIV.]
Act, 1904.

of the one part and the Council of the other part a copy A.D. 1904.
of which is set forth in the First Schedule to this Act;

“The transfer” means the assurance of the mineral water
baths to the Council under the provisions of the scheduled
agreement.

4. The scheduled agreement is hereby confirmed and declared Confirmation
to be valid and made binding upon the parties thereto and may of agreement
and shall be carried into effect by the Duke and his heirs executors between the
administrators devisees and assigns and the Council their successors Duke and
and assigns respectively and in the event of the death of the Council.
Duke before the completion of the conveyances referred to in
the scheduled agreement such consequential alterations as may
be rendered necessary thereby shall be made in the form of
conveyance annexed to the scheduled agreement.

5.—(1) The annual rentcharge to be limited to the Duke his Rentcharge
executors administrators and assigns under the provisions of the and other
scheduled agreement and all moneys payable by the Council to the moneys pay-
Duke under the scheduled agreement or any conveyance or con- able to the
veyances executed in pursuance thereof or under or by virtue of Duke secured
this Act and the costs and expenses payable by the Council to on district
the Duke in respect of the performance and observance by the fund and rate.
Council of the covenants on their part contained in the scheduled
agreement or in any conveyance or conveyances from the Duke to
the Council which may be executed in pursuance of the scheduled
agreement or in respect of any breach of any such covenants are
hereby charged upon the district fund and the general district rate
in priority to any moneys to be charged upon the said fund or rate
after the passing of this Act and the Council are hereby authorised
and required to increase the amount of every general district rate
to be levied by them so far as may be necessary for providing for
the payment of the said annual rentcharge moneys costs and
expenses as and when the same shall become due.

(2) If after the expiration of six months from the time when
any money charged upon the district fund and general district rate
under the provisions of this section has become due the same is
not paid within seven days after demand thereof in writing then
and in every such case payment thereof may without prejudice to
any other remedy be enforced on the application of the creditor
by appointment of a receiver in the same manner as the payment
of interest on moneys borrowed by the Council may under the

A.D. 1904. — provisions of the Act of 1902 be enforced by appointment of a receiver except that the proviso to section 48 of that Act shall not apply.

Certain provisions in conveyances from the Duke to Council made binding.

6. All exceptions reservations provisoes covenants conditions restrictions and other stipulations remedies rights easements and privileges contained in or expressed to be made reserved given or declared by any conveyance or conveyances executed in pursuance of the scheduled agreement shall have full effect and be binding upon the Council their successors and assigns and upon the Duke respectively and also upon the premises respectively thereby affected according to the tenor thereof notwithstanding any rule of law or equity as to perpetuity or remoteness of limitation or otherwise.

Maintenance and extension of mineral water baths after transfer.

7. After the transfer and subject to the provisions of the scheduled agreement and of the conveyance of the mineral water baths to the Council and of any other conveyance executed in pursuance of the scheduled agreement the Council may upon any premises for the time being comprised in the mineral baths undertaking maintain alter improve enlarge extend and renew the mineral water baths or any part thereof and may in connexion therewith provide acquire lay down construct take on lease or hire and maintain alter improve enlarge extend and renew additional baths of any description with all necessary and suitable buildings wells tanks springs mains pipes plant machinery lifts lavatories verandahs porticos fittings furniture apparatus and equipment and in the event of a failure of water as defined in the form of conveyance of the mineral water baths contained in the scheduled agreement the Council may subject to the provisions of such conveyance and of any other conveyance or conveyances executed in pursuance of the scheduled agreement adapt the buildings for use as shops or offices or partly as shops and partly as offices and may demise or let the same for such purposes.

Power to carry on mineral baths undertaking.

8. After the transfer and subject as in the last preceding section mentioned the Council may permit the entry into or the use of any baths premises or properties for the time being held by them under the powers of this Act by any person or persons or any class of persons or by the public generally and may provide any facilities for bathing and may supply any mineral waters for the time being belonging to them or under their control to any person or persons or any class of persons or to the public generally within the district for bathing or other purposes upon such terms and conditions and subject to such reasonable charges as they may think fit and may

close any such baths or premises for such periods as they may think fit and may appoint and pay officers and servants for the purposes of the mineral baths undertaking.

A.D. 1904.

9. The Council may for the purposes of the mineral baths undertaking acquire by agreement either in fee simple or for any term or terms of years in addition to the lands comprised in the mineral water baths any lands not exceeding in the whole five acres or any easement right or privilege therein thereunder or thereon (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Council shall not erect any buildings thereon other than laundries baths or washhouses and offices connected with the mineral baths undertaking.

Power to acquire additional lands.

10. After the transfer notwithstanding anything contained in section 10 of the Act of 1892 or in the fourth and seventh paragraphs of the agreement scheduled to and confirmed by that Act the Duke shall be under no obligation to provide or furnish to the pump room or to the public pump a supply of water or to lay down provide or maintain pipes apparatus or appliances necessary for furnishing such supply or to perform or discharge any other obligations or liabilities whatsoever imposed upon him under the said section and paragraphs or any other obligations or liabilities subsisting at the date of the transfer in respect of or in connexion with the supply of mineral water from the mineral water baths.

The Duke relieved from obligation to supply pump room and public pump.

11. After the transfer the Council shall provide and furnish to the pump room and to the public pump from the warm mineral wells or springs comprised in the mineral water baths a sufficient supply of water and shall lay down and provide and maintain in good repair and condition all pipes apparatus and appliances necessary for furnishing such supplies and the Council shall not appropriate and use the water of the said wells or springs in any manner which would prevent or interfere with the furnishing of such sufficient supply to the pump room and the public pump but nothing in this Act contained shall be deemed or construed to impose on the Council any obligation to provide and supply to the pump room or to the public pump any water other than water naturally rising from the said wells or springs.

Supply by Council to pump room and public pump.

12. For the purpose of supplying water to and for the purposes of the pump room and the public pump the Council may after the transfer and subject as aforesaid in or upon any lands

Construction by Council of works for supply of

A.D. 1904.
pump room
and public
pump.

acquired or to be acquired by them or in respect of which they may have acquired or may acquire an easement under the powers of the Act of 1892 or this Act or in any street repairable by the inhabitants at large make and maintain all necessary mains pipes drains sluices valves wash-outs junctions apparatus and other works and conveniences and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable shall extend and apply mutatis mutandis to and for the purposes of this section.

Agreements
with Devon-
shire Hos-
pital Com-
mittee.

13. After the transfer the Duke shall be and is hereby relieved from all liabilities and obligations whatsoever entered into by the Duke under the said recited agreement made the seventeenth day of June one thousand eight hundred and ninety-two between George Drewry as agent for and on behalf of the Duke of the one part and William Henry Robertson on behalf of the committee of management of the Devonshire Hospital at Buxton of the other part and also from all liabilities and obligations entered into by the Duke under the said recited agreement supplemental to the before-mentioned agreement and made the eleventh day of May one thousand nine hundred and four between Francis Drewry as agent for and on behalf of the Duke of the one part and William Stevenson on behalf of the said committee of management of the other part and all the said liabilities and obligations shall be performed and discharged by the Council in place of the Duke Provided that the liability of the Council to keep in good repair and working order the pipes referred to in the last-mentioned agreement shall extend only to such portions of the said pipes as are now or may from time to time be situate in under or upon any public highway or in under or upon any lands or hereditaments which may be acquired by the Council under or by virtue of the scheduled agreement.

Byelaws as
to mineral
water baths.

14. The Council may after the transfer and subject as afore-said make byelaws for the regulation and management of the mineral water baths and any other premises acquired or provided by the Council under the powers of this Act and for regulating the admission thereto and the user thereof and respecting the conduct of persons therein and may by such byelaws provide for the removal by the servants of the Council or any constable of any person guilty of a breach of any such byelaw.

Power to
advertise
baths.

15. The Council may pay or contribute towards the payment of the cost of maintaining at railway stations and other public

places and in newspapers magazines and other publications advertisements relating to the mineral water baths and the waters used therein provided that such payments or contributions shall be paid out of the revenue of the mineral baths undertaking. A.D. 1904.

16. For the purposes of the mineral baths the Council may after the transfer and subject as aforesaid provide and maintain a laundry and for the purposes thereof may subject to the approval of the Local Government Board and to such conditions as that Board may prescribe upon any land for the time being belonging to the Council and available for the purpose construct maintain repair alter enlarge and renew all necessary or suitable buildings plant machinery fittings apparatus and appliances. Power to carry on laundry.

17. Nothing in this Act contained shall exonerate the Council from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them in their conduct of the undertaking by this Act authorised. Council not to be exempt in case of nuisance.

18.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes herein-after mentioned any sum or sums of money not exceeding the following (that is to say):— Power to borrow.

(A) For defraying the costs and expenses incident to the purchase of the mineral water baths or in pursuance of or in connexion with the scheduled agreement and for payment of any other sums payable by the Council under such agreement the sum or sums necessary for that purpose;

(B) With the approval of the Local Government Board for extensions and improvement of the mineral baths undertaking the sum of twenty thousand pounds;

(C) For paying the costs charges and expenses of this Act as herein-after provided the sum necessary for that purpose;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of the mineral baths undertaking and the district fund and general district rate subject nevertheless to the provisions by this Act made with respect to the

A.D. 1904. application of such revenue and with respect to the charging of such district fund and general district rate with the payment of the said annual rentcharge and the other moneys costs and expenses payable to the Duke mentioned or referred to in section 5 of this Act in priority as in the same section mentioned.

Periods for
repayment
of money
borrowed.

19. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purpose marked (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within thirty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose marked (C) in the said section mentioned within five years from the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board within such period as that Board may prescribe.

Mode of rais-
ing money.

20. The Council may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act.

Certain
regulations
of Public
Health Act as
to borrowing
not to apply.

21. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act the moneys which the Council may borrow under this Act shall not be reckoned.

Provisions
of Public
Health Act
as to mort-
gages to
apply.

22. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act (that is to say):—

Section 236 Form of mortgage.

Section 237 Register of mortgages.

Section 238 Transfer of mortgages.

Council not
to regard
trusts.

23. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which

any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. A.D. 1904.

24. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof. Protection of lender from inquiry.

25. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estates and property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or charge granted under this Act on the same revenue rate and property. Saving for existing charges.

26. The following sections of the Act of 1902 (that is to say) :— Incorporation of provisions of Act of 1902 as to borrowing.

Section 43 Mode of payment off of money borrowed (except the proviso to that section) ;

Section 45 Formation maintenance and application of sinking fund ;

Section 46 Power to re-borrow ;

Section 47 Application of borrowed moneys ;

Section 48 Receiver ;

Section 49 Return as to provision for repayment of debt ;

Section 97 Inquiries and expenses of Local Government Board ;

A.D. 1904. — are hereby incorporated with this Act and shall for the purposes of such incorporation be read and construed as if they were re-enacted in this Act.

Application
of revenue
of mineral
baths under-
taking.

27. The Council shall apply all money from time to time received by them in respect of the mineral baths undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the mineral baths undertaking ;

Secondly In payment of the said annual rentcharge of two thousand four hundred and twenty-six pounds ;

Thirdly In payment of the interest on moneys borrowed by the Council for the purposes of the mineral baths undertaking ;

Fourthly In payment of the requisite instalments appropriations or sinking fund payments in respect of moneys borrowed by the Council for the purposes of the mineral baths undertaking ;

Fifthly In repayment to the district fund of any deficiency in the revenue or receipts of the mineral baths undertaking made good thereof ;

Sixthly In payment of the cost of advertising as authorised by this Act ;

Seventhly In providing a reserve fund for the mineral baths undertaking if they think fit by setting aside such moneys as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to two thousand pounds which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from the mineral baths undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the sum of two thousand pounds and so from time to time as often as such reduction happens :

And the Council shall carry to the district fund any balance remaining in any year after retaining or setting aside such

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

a sum as may in the opinion of the Council be required for carrying on the mineral baths undertaking and paying the current expenses connected therewith and shall also carry to the district fund the annual proceeds of the reserve fund when such fund amounts to two thousand pounds. A.D. 1904.

28. If the revenue or receipts of the Council on account of the mineral baths undertaking shall be insufficient to defray the working and establishment expenses and cost of maintenance any such deficiency shall be made good out of the district fund and the general district rate to be made by the Council next or next but one after such deficiency has been ascertained shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund. Deficiency in receipts.

29. The Council shall keep their accounts in respect of the mineral baths undertaking separate from all their other accounts distinguishing therein capital from revenue. Separate accounts to be kept.

30. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts. Audit of accounts.

31. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or otherwise provided for) shall be paid out of the district fund and general district rate. Expenses of execution of Act.

32. The provisions of the Baths and Washhouses Acts 1846 to 1896 or of any Act amending the same shall not apply to any baths to be acquired established or carried on by the Council under the powers of this Act or to the mineral baths undertaking or any part thereof. Baths and Washhouses Acts not to apply.

33. The Council may make byelaws for regulating the conduct of any persons for the time being licensed by them under the powers conferred in that behalf by the Act of 1892 to carry on the calling of luggage porter light porter public messenger or commissionaire and for regulating the charges to be made by any such persons. Byelaws as to porters and messengers.

34. The provisions of Part XII. of the Act of 1902 (Recreation grounds) (except the section whereof the marginal note is "Recreation grounds to be deemed streets for police purposes") shall not apply to any land or hereditaments which may hereafter be conveyed by the present Duke of Devonshire or his successors As to recreation grounds.

A.D. 1904. — in the dukedom of Devonshire to the Council or their successors for the purposes of a recreation ground garden plantation wood park or open space or other place of public resort unless and so far as otherwise expressly provided in the conveyance thereof to the Council and the Council may accept and take any lands or hereditaments which may hereafter be conveyed by the present Duke of Devonshire or his successors in the said dukedom to the Council or their successors for the purposes aforesaid or any of them upon and subject to such terms conditions and restrictions as to the user thereof or otherwise as may from time to time be agreed between him or them and the Council or their successors.

Confirmation
of byelaws.

35. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

Authentica-
tion and
service of
notices &c.

36.—(1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Recovery of
penalties.

37. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as a civil debt.

Penalties to
be paid to
treasurer.

38. All penalties recovered by the Council or by any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer of the Council and carried by him to the credit of the district fund.

Saving
rights of
Duchy of
Lancaster.

39. Nothing contained in this Act shall extend or operate to authorise the Council to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land

[4 EDW. 7.] *Buxton Urban District Council* [Ch. CCXXIV.]
Act, 1904.

parcel of any manor or other manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy. A.D. 1904

40. The costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act including the costs charges and expenses incidental to the complying with the provisions of the Borough Funds Acts 1872 and 1903 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under the authority of this Act for that purpose. Costs of Act.

A.D. 1904.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

AN AGREEMENT made the twenty-fourth day of June one thousand nine hundred and four between THE MOST NOBLE SPENCER COMPTON DUKE OF DEVONSHIRE K.G. (herein-after called "the Duke") of the one part and THE URBAN DISTRICT COUNCIL OF BUXTON in the county of Derby (herein-after called "the Council") of the other part whereby it is agreed between the said parties hereto as follows (that is to say) :—

1. The Duke is to sell and the Council is to buy First All those pieces of land and hereditaments buildings and fixtures (other than fixtures or fittings usually known or regarded as tenants' fixtures) situate at Buxton in the county of Derby more particularly described and expressed to be conveyed in the form of conveyance contained in the schedule hereto and the inheritance thereof in fee simple free from incumbrances except as herein-after mentioned but subject to the exceptions reservations provisoes conditions covenants by the Council and restrictions and other stipulations herein-after mentioned or referred to Secondly The goodwill of the mineral baths undertaking hitherto carried on by the Duke on or in connexion with the said premises first herein-before referred to and the benefits eighthly expressed to be conveyed by the said form of conveyance Thirdly All the movable laundry plant and other movable plant machinery furniture linen blankets fittings (including fixtures or fittings usually known or regarded as tenants' fixtures) implements utensils materials and things belonging to the Duke and being in or about the natural baths hot baths and baths laundry respectively mentioned in the said form of conveyance or any of them and used for the purposes thereof on the transfer date herein-after mentioned.

2. The consideration for the purchase of the premises first and secondly herein-before mentioned or referred to shall be first the sum of fifty-five thousand pounds to be paid in sixty years from the completion of the purchase together with interest at the rate of four pounds per centum per annum on the principal moneys from time to time remaining unpaid by means of an annual rentcharge of two thousand four hundred and twenty-six pounds to be limited to the Duke his executors administrators and assigns and to be made payable half-yearly for sixty years out of the said pieces of land and hereditaments as expressed in the said form of conveyance and to be further secured by the covenant of the Council and also to be charged upon the district fund and general district rate of the urban district of Buxton aforesaid as herein-after mentioned and secondly the restrictive and

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

other covenants and stipulations to be entered into by the Council as herein-after mentioned. The consideration for the purchase of the premises thirdly herein-before mentioned or referred to shall be a sum equal to the amount of the valuation thereof herein-after mentioned. A.D. 1904.

3. For the purpose of ascertaining the price to be paid for the said premises thirdly herein-before mentioned or referred to a valuation thereof as on the said transfer date shall be made by two arbitrators one to be appointed by either party and their umpire in accordance with the provisions of the Arbitration Act 1889. Such valuation shall state separate sums as the values of (A) the fixtures or fittings usually known or regarded as tenants' fixtures (B) the remainder of the premises comprised in the said valuation.

4. The Council shall pay the aggregate amount of the said valuation on the first day of January one thousand nine hundred and five at the office No. 14 Great George Street in the city of Westminster of Messrs. Currey and Co. the solicitors of the Duke at which time and place the purchase is to be completed and if the purchase shall not be completed on the said last-mentioned day the Council shall pay interest on the said aggregate amount of the said valuation at the rate of four pounds per centum per annum from the said first day of January one thousand nine hundred and five until the actual completion of the purchase and shall also pay on the actual completion of the purchase a sum equivalent to interest at the rate aforesaid on a sum of fifty-five thousand pounds for the period elapsing between the thirty-first day of December one thousand nine hundred and four and the actual completion of the purchase.

5. The transfer date shall be midnight on the thirty-first day of December one thousand nine hundred and four and upon the completion of the purchase the Council shall be let into possession or receipt of the rents and profits of the premises hereby agreed to be sold and into receipt of the profits of the said mineral baths undertaking as from the transfer date and shall as from the transfer date pay and discharge all wages rates taxes expenses and other outgoings in respect of the premises agreed to be sold and the business heretofore carried on by the Duke upon or in connexion with the same premises and shall indemnify the Duke his heirs executors and administrators against all such wages rates taxes expenses and other outgoings as from the transfer date and all necessary apportionments shall be made for the purposes of this clause and sums due from either party to the other shall be adjusted and paid on completion. And as from the transfer date until possession is actually given to the Council the business of the said baths shall be carried on by the Duke or under his direction as heretofore at the risk and cost but for the benefit of the Council who shall fully indemnify the Duke his heirs executors and administrators in respect of such carrying on of the business and all moneys payable by the Council to the Duke his heirs executors or administrators in respect of the carrying on of the business after the transfer date shall be paid on completion of the purchase and any question which may arise as to the amount due from the Council in respect of the

A.D. 1904. — said business and any other questions which may arise concerning the carrying on thereof after the transfer date shall be decided by the arbitration of two referees one to be appointed by either party and their umpire in accordance with the provisions of the Arbitration Act 1889.

6. The sale of the said pieces of land hereditaments and premises first and secondly herein-before mentioned or referred to is made subject to the exceptions reservations provisoes conditions covenants by the Council and restrictions and other stipulations expressed in the said form of conveyance contained in the schedule hereto and the assurance to the Council shall be in the said form and the Council shall enter into the covenants on their part contained in the said form and take the property subject to the provisions and stipulations therein contained and shall execute a counterpart of the conveyance which shall upon the completion of the purchase be retained by the Duke as and for his own property.

7. The Council shall not make any investigation into or objection to the title of the Duke his heirs executors administrators or assigns or require the delivery of any abstract of title or any title deeds or any copies thereof or any acknowledgment for the production or undertaking for the safe custody of any title deeds or other documents.

8. If the Council shall be desirous of purchasing (a) the pieces of land shops and premises and colonnade situate on the east side of the hot baths and delineated and coloured yellow and blue respectively on the plan referred to in the said form of conveyance or (b) the two pieces of land and shops situate beside the entrance to the natural baths and delineated on the said plan and thereon edged and hatched yellow for the purpose of enlarging the baths or the appurtenances thereof or providing additional accommodation for the purpose thereof and in connexion therewith and shall during the life of the Duke or within one year after his death give to him his heirs executors administrators devisees or assigns or his or their agent for the time being notice in writing of such their desire the Duke his heirs executors administrators devisees or assigns shall sell and the Council shall buy the pieces of land shops and premises mentioned in such notice upon the terms and conditions herein-after mentioned (that is to say):—

- (1) The price for the said premises coloured yellow and blue on the said plan shall be the sum of eight thousand two hundred pounds and the price for the said premises edged and hatched yellow on the said plan shall be the sum of one thousand pounds:
- (2) The said premises shall be deemed to be sold and shall be conveyed subject to the then subsisting leases and tenancies thereof respectively and to all rights of the lessees or tenants of the said premises:
- (3) The said premises shall be deemed to be sold and shall be respectively conveyed subject to the exception and reservation to the Duke his heirs devisees and assigns of full and free right and liberty to use repair and maintain all drains and sewers in or under the

same for the benefit of or in connexion with any other land or buildings then belonging to the Duke his heirs devisees or assigns for the benefit whereof or in connexion wherewith the same shall be then used or enjoyed by the Duke his heirs devisees or assigns or any lessee or tenant of the Duke his heirs devisees or assigns and full and free right and liberty to use and enjoy all other easements or usages in the nature of easements whatsoever affecting the said premises for the benefit of or in connexion with any other land and buildings then belonging to the Duke his heirs devisees or assigns for the benefit whereof or in connexion wherewith the same easements or usages shall be then used and enjoyed by the Duke his heirs devisees or assigns or any lessee or tenant of the Duke his heirs devisees or assigns:

A.D. 1904.

- (4) Upon the sale of the said premises coloured yellow and blue the Council shall forthwith determine the tenancies thereof and convert and adapt the buildings on the said premises coloured yellow for the purpose of enlarging the baths or providing additional accommodation in connexion therewith and shall also forthwith at their own expense take down and remove the colonnade or verandah now standing on the said premises coloured blue and shall also take down the front or façade of the shops now standing on the said premises coloured yellow which faces eastwards and shall rebuild the same front or façade to the satisfaction of the Duke his heirs devisees or assigns the person or persons for the time being entitled under the conveyance of the premises now agreed to be sold to release the restrictive covenants therein contained and in accordance with plans elevations and specifications to be first approved in writing by such person or persons or his or their agent or agents so as to make the said eastward front or façade when so rebuilt strictly uniform in style and architectural appearance with the existing front or façade of the said hot baths which faces southwards and the sale of the said premises coloured yellow shall be deemed to be made subject to such of the exceptions reservations conditions covenants by the Council and restrictive and other stipulations and provisions expressed in the said form of conveyance contained in the schedule hereto as affect the piece of land coloured pink on the said plan and the buildings thereon:
- (5) The sale of the said premises coloured blue shall be deemed to be made subject to all public rights of way if any along such colonnade or verandah and also subject to such of the exceptions reservations conditions covenants by the Council and restrictive and other stipulations and provisions expressed in the said form of conveyance contained in the schedule hereto as affect the pieces of land coloured green on the said plan ° Provided always that notwithstanding the covenants by the Council first fifthly sixthly and fifteenthly expressed in the said form of conveyance or the

A.D. 1904.

covenants to the like effect to be contained in the conveyance of the said premises coloured blue it shall be lawful for the Council after the conveyance to them of the said premises coloured yellow and blue as aforesaid to erect and maintain upon the said premises coloured blue a verandah or covered way strictly uniform in style architectural appearance dimensions and construction with any verandah or covered way which shall have been erected or be in course of erection upon the said premises coloured green as aforesaid and adjoining the south side of the said premises coloured pink as aforesaid and so that any such verandah or covered way on the said premises coloured blue shall not be altered except on the same terms as those upon which alterations in any verandah on the said premises coloured green are permitted by the said form of conveyance:

- (6) Upon the sale of the said premises edged and hatched yellow the Council shall forthwith determine the tenancies thereof and convert and adapt the buildings on the same for the purpose of enlarging the baths or providing additional accommodation in connexion therewith and the sale of the said premises edged and hatched yellow shall be deemed to be made subject to such of the exceptions reservations conditions covenants by the Council restrictive and other stipulations and provisions expressed in the said form of conveyance as affect the said piece of land coloured purple on the said plan and the buildings thereon:
- (7) The assurance of the said premises coloured yellow and blue as aforesaid and of the said premises edged and hatched yellow as aforesaid to the Council shall be in the said form contained in the schedule hereto with such omissions additions and modifications only as the circumstances require and all the conditions and covenants by the Council and terms clauses and provisions expressed in the said form of conveyance contained in the schedule hereto shall (as far as the same can respectively be made applicable) and subject to the modifications provided for in this eighth clause of this agreement apply to the said premises respectively and the buildings thereon respectively and be binding upon the Council and all persons or bodies claiming through or under them in the same manner as they would respectively have applied and been binding if the said premises coloured yellow and the buildings thereon had formed part of the premises coloured pink on the said plan and the said premises coloured blue had formed part of the premises coloured green on the said plan and the said premises edged and hatched yellow and the buildings thereon had formed part of the premises coloured purple on the said plan and they had been respectively so comprised in the conveyance to the Council of the lands and hereditaments expressed to be conveyed in the said form of conveyance:

- (8) The Council shall be entitled to purchase the said premises coloured yellow and blue as aforesaid without also purchasing or after having purchased the said premises edged and hatched yellow as aforesaid and also to purchase the said premises edged and hatched yellow as aforesaid without also purchasing or after having purchased the said premises coloured yellow and blue as aforesaid but save as aforesaid they shall not be entitled to purchase a part or parts only of the said premises or any of them and they shall not be entitled to purchase the said premises coloured yellow without also purchasing the said premises coloured blue or to purchase the said premises coloured blue without also purchasing the said premises coloured yellow : A.D. 1904.
- (9) The sale of the said premises or any part thereof shall be completed at the expiration of six calendar months from the date of the receipt of such notice in writing as aforesaid relating thereto and the purchase money shall be paid on completion and the several clauses of this agreement numbered respectively four (so far as regards payment of interest on the purchase money after the date fixed for completion) five (as to possession or receipt of rents and profits and discharge of outgoings and apportionment of rents receipts and outgoings up to and after the date fixed for completion) six (so far as relates to the execution and retention of counterpart conveyances) and seven shall apply to sales and conveyances of the said premises :
- (10) Upon the conveyance or respective conveyances of the said premises coloured yellow and blue and the said premises edged and hatched yellow as aforesaid the Council shall at their own expense obtain the concurrence in such conveyance or conveyances of all persons (other than the Duke his heirs executors administrators or devisees) in whom any estate or interest therein not being a mortgage or charge shall be vested in such manner as may be required by the Duke his heirs executors administrators or devisees for the purpose of rendering the stipulations and provisions of the conveyance binding on the premises conveyed and upon the owner or owners of every estate or interest therein :
- (11) Notwithstanding the option of purchase hereby given to the Council it shall be lawful for the Duke his heirs executors administrators devisees or assigns as to the whole or any part or parts of the said premises respectively coloured yellow and blue and edged and hatched yellow as aforesaid as to which the said option of purchase shall not for the time being have been exercised from time to time to let or demise or agree to let or demise the same for any period not greater than from year to year upon such terms and conditions in all respects as he or they may think fit and to accept surrenders of leases or tenancies and to make

A.D. 1904.

arrangements with tenants or lessees varying the terms upon which they hold or otherwise and to grant licences to commit breaches of covenant and the estate and interest of the Council under the said option of purchase or any exercise thereof shall be subject to all leases tenancies agreements and arrangements which shall have been granted or made under this present provision.

9. In consideration of the obligations on the part of the Duke his heirs executors administrators or assigns to be performed and fulfilled under this agreement the Council will subject to the approval of Parliament cause to be inserted in the Bill now being promoted by the Council for the Buxton Urban District Council Act 1904 and in the said intended Act provisions for the following purposes namely (1) For relieving the Duke his heirs executors and administrators from all liabilities and obligations whatsoever under an agreement dated the seventeenth day of June one thousand eight hundred and ninety-two and made between George Drewry as agent for the Duke of the one part and William Henry Robertson on behalf of the committee of management of the Devonshire Hospital at Buxton aforesaid of the other part and an agreement supplemental thereto dated the eleventh day of May one thousand nine hundred and four and made between Francis Drewry as agent for the Duke of the one part and William Stevenson on behalf of the said committee of management of the other part and for transferring to the Council the liabilities and obligations of the Duke under the said agreements or either of them Provided that the liability of the Council to keep in good repair and working order the pipes referred to in the last-mentioned agreement shall extend only to such portions of the said pipes as are now or may from time to time be situate in under or upon any public highway or in under or upon any lands and hereditaments which may be acquired by the Council under or by virtue of this agreement (2) For relieving the Duke his heirs executors and administrators from all liabilities and obligations whatsoever under clause 10 of the Buxton Local Board Act 1892 or under the fourth and seventh paragraphs respectively of the agreement scheduled to the said last-mentioned Act or otherwise in respect of or in connexion with the supply of mineral water at Buxton aforesaid and for transferring to the Council all such last-mentioned liabilities and obligations (3) For securing that all moneys from time to time received by the Council in respect of their mineral baths undertaking (except moneys borrowed and other moneys properly regarded as received on capital account) shall be applied after payment of the working and establishment expenses (not including advertising) and cost of maintenance of their said mineral baths undertaking in the first place in or towards payment of the said rentcharge (4) For providing that the said rentcharge and all moneys payable by the Council under this agreement or any conveyance to be executed in pursuance thereof or under or by virtue of the said intended Act and the costs and expenses of the performance and observance by the Council of the covenants on their part contained herein or in the said conveyance or in any other conveyance or conveyances to be executed of the said premises coloured yellow and blue

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

and edged and hatched yellow or any part thereof shall be charged upon and payable out of the district fund and the general district rate of the urban district of Buxton and for enabling and requiring the Council for the purposes aforesaid or any of them to increase the general district rate of the said urban district and for enforcing the said charge and securing the priority thereof over all or any moneys to be hereafter charged on the said district fund and general district rate and (5) for providing that all the exceptions reservations provisoes covenants conditions restrictions and other stipulations remedies rights easements and privileges in the said form of conveyance or in any other conveyance or conveyances to be executed of the said premises coloured yellow and blue and edged and hatched with yellow or any part thereof contained or expressed to be thereby made reserved given or declared shall have full effect and be binding upon the Council their successors and assigns and upon the premises thereby respectively affected in perpetuity according to the tenor thereof and notwithstanding any rule of law or equity as to perpetuity or remoteness of limitation or otherwise.

A.D. 1904.
—

10. This agreement shall if Parliament so thinks fit be scheduled to and confirmed by the said intended Buxton Urban District Council Act 1904 and is made subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein.

11. This agreement is conditional upon the same being confirmed by Parliament before the thirty-first December one thousand nine hundred and four by an Act in the form of the amended Bill as signed by Messrs. Baker Lees and Co. and Messrs. Grahames Currey and Spens and nothing shall be inserted in or omitted from the said Bill and no alterations shall be made therein which in the opinion of the Duke his heirs executors or administrators would affect his interests without the previous approval of the Duke his heirs executors or administrators.

In witness whereof the Duke hath hereunto set his hand and seal and the Council have caused their common seal to be hereunto affixed the day and year first before written.

The SCHEDULE to the above Agreement.

FORM OF CONVEYANCE.

THIS INDENTURE made the day of one thousand nine hundred and between THE MOST NOBLE SPENCER COMPTON DUKE OF DEVONSHIRE K.G. (herein-after called "the Duke") of the first part *A.B. a trustee to be nominated by the Duke* of the second part and THE URBAN DISTRICT COUNCIL OF BUXTON in the county of Derby (herein-after called "the Council") of the third part.

(Here will be inserted recital of intended Act and other matters.)

Now this indenture witnesseth first that in pursuance of the said agreement and in consideration of the sum of fifty-five thousand pounds payable with

A.D. 1904. interest at the rate herein-after mentioned and in manner herein-after appearing by means of the rentcharge herein-after limited and of the further sum of — upon the execution of these presents paid by the Council to the Duke (the receipt whereof the Duke doth hereby acknowledge) and in consideration also of the yearly rentcharge herein-after limited and secured to the Duke his executors administrators and assigns and in consideration also of the restrictive and other covenants stipulations and provisions herein-after expressed and contained the Duke as beneficial owner doth hereby grant and convey unto the said A.B. and his heirs—

First The two pieces of land and hereditaments situate at Buxton in the county of Derby which with the boundaries and abuttals thereof are respectively delineated and more particularly described on the plan attached to these presents and are thereon respectively coloured pink and edged and hatched pink together with the buildings now standing on the same pieces of land respectively and known as the hot baths and the baths laundry and the fixed baths boilers machinery laundry plant and other fixtures in the same buildings and the appurtenances of the said buildings standing or being on or under the said pieces of land or either of them.

Secondly All that piece of land situate at Buxton aforesaid which with the boundaries and abuttals thereof is delineated and more particularly described on the said plan and is thereon coloured purple and comprises the site of a spring of mineral water rising in the gentlemen's natural swimming bath shown on the said plan except such spaces and buildings over or above part of the said piece of land as are herein-after expressed to be excepted and reserved but (by way of conveyance) together with such parts of the buildings now standing on the same piece of land as constitute or are known as the natural baths and the spaces occupied thereby and the fixed baths boilers machinery plant and other fixtures in the said last-mentioned parts of buildings and the appurtenances of the said natural baths buildings and the right to use maintain and repair so much of the now existing coal-shoot leading from the aperture marked W on the said plan into the boiler-room of the said natural baths and shown on the said plan by dotted purple lines as lies in or under any lands and hereditaments belonging to the Duke for the purpose of delivering coals and fuel for the use of the said natural baths.

Thirdly All the estate and interest of the Duke in the above-mentioned spring of mineral water rising in the said premises shown on the said plan by the colour purple and in all other (if any) the springs and waters rising therein or in the pieces of land and premises delineated on the said plan and thereon edged and hatched yellow.

Fourthly Full and free right and liberty for the Council their successors and assigns and all persons whom they may authorise in common with the Duke his heirs and assigns and all persons whom he or they may authorise at all times hereafter by day or by night and for all purposes with or without burdens trucks barrows invalid chairs or similar articles laden or unladen to go pass and repass to and from the said premises shown on the said plan by the colour purple along the passage or covered way marked A B and C

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

upon the said plan and along the road or yard at the back of the square between the points marked X and Y upon the said plan. A.D. 1904.

Fifthly All those pieces of land now the site of a roadway and open space which are shown on the said plan and thereon coloured brown and green and also all those two pieces of land now the sites of two roadways which are shown on the said plan and thereon edged and hatched brown together with all tanks pipes and apparatus in or under the same used for the purpose of the said baths.

Sixthly All tanks pipes and apparatus used for the purpose of the said baths in or under the said pieces of land and premises delineated on the said plan and thereon edged and hatched yellow together with the right to use such tanks pipes and apparatus for the purpose of the said baths and also subject nevertheless and without prejudice to the existing interests of the present lessees and tenants of the said last-mentioned pieces of land full and free right and liberty with or without workmen from time to time to enter upon and under the said last-mentioned pieces of land for the purpose of inspecting repairing reconstructing and renewing all such tanks pipes and apparatus as aforesaid and any renewals thereof.

Except and reserving always unto the Duke his heirs and assigns—

First All such parts of the existing messuage or building known as the Old Hall Hotel and of the offices and appurtenances thereof as are situate over or above any part of the said piece of land coloured purple as aforesaid the situation of which parts of the said Old Hall Hotel and premises are for convenience of identification shown on the said plan by a darker purple verge line but such verge line shall not control or limit the effect of this present exception and reservation and all other (if any) the hereditaments and premises comprised in or expressed to be demised by an indenture of lease dated the twentieth day of April one thousand nine hundred and one and made between the Duke of the one part and Philip Blades of the other part whereby the said Old Hall Hotel was demised to the said Philip Blades for the term of ten years computed from the twenty-fifth day of March one thousand nine hundred and one or so much of the same demised premises as is situate over or above the said piece of land coloured purple as aforesaid.

Secondly The space or spaces above the premises comprised in the last preceding exception and reservation extending upwards from the lowest portions of the same premises usque ad coelum.

Thirdly Full and free right and liberty for ever hereafter to maintain in their present position all such portions of the said Old Hall Hotel and premises first herein-before expressed to be reserved and excepted as are superjacent over or adjacent to the said piece of land coloured purple or any part thereof or the existing buildings and erections thereon and also to repair rebuild alter or reconstruct the same and also to take down and remove the same and also to build construct or set up and maintain over or above the said superjacent or adjacent portions of the said Old Hall Hotel and premises or in over or above the position or site thereof any new or substituted or additional buildings or erections whatsoever And also for the purpose of

A.D. 1904. making or providing foundations or basement or supporting walls or vaultings for carrying or supporting any such new substituted or additional buildings to lay and construct in under or upon the said piece of land coloured purple in the place of any existing walls and foundations such new foundations and walls as may appear necessary to the person or persons for the time being exercising this present right or liberty Provided that in the exercise of this present right or liberty neither the existing walls and foundations nor any walls or foundations that may be substituted therefor shall be extended laterally beyond the site of the existing walls or foundations or below the present level of the same respectively Together with full and free right and privilege for ever hereafter to have the said superjacent and adjacent portions of the said Old Hall Hotel and premises and also whatever buildings or erections shall hereafter be erected or maintained over or above or beside the said piece of land coloured purple or any part thereof supported vertically and laterally by the said piece of land coloured purple and every part thereof and the existing and any future buildings thereon and the subsoil thereunder And also for the purpose of securing or ensuring such support full and free right and liberty at all times hereafter with or without workmen and machinery to enter upon into and under the said piece of land coloured purple and every part thereof and any existing or future buildings or baths thereon and to repair renew strengthen reconstruct underpin and amend all or any walls roofs ceilings vaultings piers pillars beams ties girders lintels foundations substructures or other matters or things supporting or assisting to support vertically or laterally all or any buildings matters premises and things for which any right of support is hereby or by law reserved or given but so nevertheless that neither the existing walls piers pillars foundations substructures or other works nor any new walls piers pillars substructures or other works shall be extended laterally beyond the site of the existing walls piers pillars foundations substructures or other works or below the present level of the same respectively.

Fourthly The fabric and materials of the existing covered passage or way leading to the said Old Hall Hotel from the colonnade and situate above and supported by part of the existing buildings upon the said piece of land coloured purple in the position indicated on the said plan by dotted red lines and marked "Passage way" together with full and free right and liberty for the Duke his heirs and assigns the owners or occupiers from time to time of the said Old Hall Hotel or the site thereof or any part thereof respectively and his and their lessees and tenants and all persons authorised by him or them at all times hereafter by day or by night and for all purposes with or without burdens trucks barrows invalid chairs or similar articles laden or unladen to go pass and repass across along over and upon the said piece of land coloured purple as aforesaid and the buildings thereon by means of the said existing covered passage or way or any new substituted reconstructed or other passage or way hereafter occupying the same position to and fro between the said colonnade and the said Old Hall Hotel or the site of the same or of any part thereof or any buildings at any time erected upon such

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

site And also to repair maintain support amend renew and reconstruct the said passage or way and the walls fabric and materials of which the same is now or shall hereafter be constructed and the sides roof and appurtenances thereof and for that purpose with or without workmen and machinery to enter upon and into the said piece of land coloured purple and any existing or future buildings thereon and to repair renew strengthen reconstruct underpin and amend all or any walls roofs vaultings piers pillars beams ties girders foundations or other things or matters supporting or assisting to support the said existing passage or way or any such new substituted reconstructed or other passage or way as aforesaid or any part thereof and the walls and fabric by which the same is now or shall hereafter be enclosed and the roofs and appurtenances thereof but so nevertheless that neither the existing walls piers pillars foundations or other works nor any new walls piers pillars foundations or other works shall be extended laterally beyond the site of the existing walls piers pillars foundations or other works or below the present level of the same respectively.

A.D. 1904:
—

Fifthly Full and free right and liberty in the exercise of all or any of the rights and liberties herein expressed to be hereby reserved and without incurring any liability whatsoever to the Council their successors or assigns temporarily or permanently to stop or divert the flow of all or any water from any mineral spring or other source upon any part of the premises hereby conveyed and otherwise to interfere with or obstruct or wholly prevent the use of the said last-mentioned premises or any part or parts thereof as or for baths or for the purposes of a bathing establishment or otherwise.

Sixthly Full and free right and liberty to use repair and maintain all drains and sewers in or under any lands or hereditaments hereby conveyed for the benefit of or in connexion with any other lands or hereditaments now belonging to the Duke for the benefit whereof or in connexion where-with the same are now used or enjoyed by the Duke or any lessee or tenant of the Duke.

Seventhly Full and free right and liberty for the Duke his heirs and assigns and his and their lessees and tenants owners or occupiers for the time being of any lands buildings messuages or hereditaments adjoining or accessible from the said pieces of land coloured brown and green and edged and hatched brown as aforesaid or any of them at all times hereafter by day or by night and for all purposes with or without horses carts carriages and other vehicles laden or unladen to go pass and repass along over and across such parts of the said last-mentioned pieces of land as are formed and now used as roadways and at all times hereafter by day or by night and for all purposes on foot to go pass and repass along over and across all or any parts of the same pieces of land.

Eighthly The whole of the soil of any highway road or street (except the premises herein-before fifthly described and conveyed) whereon the premises herein-before expressed to be hereby conveyed or any part thereof abut or abuts.

A.D. 1904.

To hold unto the said A.B. and his heirs subject to all rights of way light drainage sewerage and running of water or soil and other easements affecting the said premises or any part or parts thereof to which any person or persons corporation or corporations other than the Duke may be entitled and subject also to any subsisting lease or tenancy of any part of the premises.

To the use that the Duke his executors administrators and assigns shall receive a yearly rentcharge of two thousand four hundred and twenty-six pounds representing instalments of mixed principal and interest sufficient to discharge in sixty years from the date hereof the said sum of fifty-five thousand pounds with interest at the rate of four pounds per centum per annum on the purchase money from time to time remaining unpaid such rentcharge to commence from the date of these presents and to be charged upon and issuing out of all the lands buildings and corporeal hereditaments hereby conveyed and to be payable for sixty years from the date of these presents by equal portions half-yearly on the twenty-fifth day of March and the twenty-ninth day of September in every year without any deduction except for property tax as herein-after provided the first payment to be made on the first half-yearly day for payment after the date of these presents and the last payment to be made on the sixtieth anniversary of the date of these presents and such first and last payments to be if necessary apportioned sums in respect of broken periods of less than half a year And subject to and charged with the said rentcharge and all powers and remedies given by law or any statute or by these presents for securing the same.

To the use of the Council their successors and assigns in fee simple.

And this indenture witnesseth secondly that in further pursuance of the said agreement and for the consideration aforesaid the Duke as beneficial owner doth hereby assign and convey unto the Council their successors and assigns—

Seventhly The goodwill of the mineral baths undertaking hitherto carried on by the Duke on or in connexion with the said premises herein-before mentioned or some part or parts thereof.

Eighthly All benefits to accrue to the Duke his heirs executors administrators or assigns under the agreement dated the seventeenth day of June one thousand eight hundred and ninety-two and the agreement supplemental thereto herein-after referred to or otherwise in respect of or in connexion with any other subsisting liabilities or obligations of the Duke in respect of or in connexion with the supply of mineral water at Buxton aforesaid from the premises hereby conveyed.

To hold unto the Council their successors and assigns absolutely.

Provided always and it is hereby agreed that notwithstanding the express reservation by these presents of any rights liberties easements or privileges the Duke his heirs and assigns shall have in respect of any property now belonging to the Duke which is not included in or is expressly exempted

from the conveyance hereby made all such further rights liberties easements and privileges if any as he or they would have had if no such express reservation as aforesaid had been herein contained. A.D. 1904.

Provided always and it is hereby agreed and declared that the hereditaments and premises hereby conveyed shall not be entered by the Duke his heirs or assigns in exercise of any right or liberty hereby reserved to the Duke his heirs and assigns of repairing rebuilding altering reconstructing underpinning maintaining or amending any hereditaments and premises not hereby conveyed without one calendar month's notice in writing being given to the Council their successors or assigns except in the case of urgent necessity And also that all works to be done by the Duke his heirs or assigns which are reasonably likely to cause a material interference with or interruption of the carrying on of the business and undertaking of the said baths shall except in the case of urgent necessity be done between the first day of November in any year and the following thirtieth day of April in any year And also that all injury which may be caused to the buildings on the premises hereby conveyed or to the plant machinery and apparatus for the time being thereon in the exercise of the right or liberty lastly herein-before referred to shall be forthwith made good by the person or persons exercising such right or liberty.

Provided also and it is hereby declared that the Council their successors or assigns shall not be entitled to any right of light or air which would in any manner diminish or interfere with the free and unrestricted user of any adjoining or neighbouring property now belonging to the Duke either for building or any other purpose and the assurance herein-before contained shall not be deemed or construed to imply the grant of any such right.

And it is hereby further agreed and declared that the enjoyment by the Council and their assigns or by any person or persons corporation or corporations claiming under them of the access and use of any light or air to and for the said premises expressed to be hereby conveyed by means of any windows skylights or other apertures present or future shall be deemed to be henceforth had and enjoyed with the express permission and consent hereby given of the Duke his heirs and assigns so far as shall be necessary to secure and to the intent that the Council and their assigns and any person or persons corporation or corporations claiming as aforesaid shall not acquire any easement or right in respect of such access or user which would in any manner interfere with or prevent the free and unrestricted user of any adjoining or neighbouring property now belonging to the Duke for building purposes.

Provided always and it is hereby agreed and declared that nothing herein contained shall operate or be construed as any guarantee or warranty on the part of the Duke that any mineral or other spring in or upon any part of the premises expressed to be hereby conveyed is flowing or shall flow at any time or times hereafter but in respect of any and every such spring the Council shall accept all risk of the same wholly or partially ceasing to flow or ceasing to be of a mineral or any other particular character.

A.D. 1904.

And the Council for themselves their successors and assigns and to the intent and so as to bind not only themselves but also the hereditaments respectively affected by the restrictive stipulations herein-after expressed into whosoever hands the same hereditaments may come and also all persons claiming or deriving title to the same hereditaments respectively through or under the Council do hereby covenant with the Duke his executors and administrators and also (as a separate covenant) with the Duke his heirs and assigns the owner or owners for the time being of the other freehold hereditaments in the urban district of Buxton now belonging to the Duke (herein-after called "the protected hereditaments") or any part thereof as follows (that is to say) :—

First That no alteration shall be made in the elevation or architectural or external appearance or construction of the existing buildings comprised in the assurance made by these presents other than the erection of a verandah or covered way upon the said premises coloured green as aforesaid and adjoining the south side of the premises shown on the said plan by the colour pink Such verandah or covered way not to be erected or altered except in accordance with plans elevations and specifications which shall have been submitted to and approved in writing by the Duke his heirs or assigns or other the owner or owners for the time being of the protected hereditaments or his or their agent or agents.

Secondly That no new substituted or additional buildings or erection except as herein after mentioned shall be constructed set up or made upon any part of the said pieces of land first and secondly herein-before described and expressed to be hereby assured which shall exceed in height the buildings now existing on such part thereof or which shall have an architectural appearance different from that of the now existing buildings on such part thereof or which shall obstruct or interfere with the now existing access of light or air to any adjacent or neighbouring lands or buildings now belonging to or in the possession of the Duke or his lessees or tenants And in particular that no outlets for smoke or steam other than the existing ones and no chimney shall be constructed in any such existing new substituted or additional buildings except new or substituted or enlarged chimneys in the place of the existing chimneys at the points marked S and T respectively on the said plan and that no such new or substituted or enlarged chimneys shall at any time be constructed or maintained except in accordance with plans and elevations which shall have been submitted to and approved in writing by the Duke his heirs or assigns or other the owner or owners for the time being of the protected hereditaments or his or their agent or agents.

Thirdly That neither of the said pieces of land respectively coloured pink and purple as aforesaid nor any part or parts of either of them nor any building now or hereafter erected or standing on either of them shall at any time hereafter be used for any other purpose than as and for baths or an establishment for providing and administering mineral baths Turkish baths Nauheim baths electric baths or other baths or medical treatment having relation to baths or waters and no business or process whatsoever except such

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

A.D. 1904.

an establishment and the actual administration of such baths and medical treatment shall be carried on or permitted upon or in the said last-mentioned pieces of land or any of them or any part or parts of them or of any existing or future building thereon.

Fourthly That neither the said piece of land edged and hatched pink as aforesaid nor any part thereof nor any present or future building thereon shall at any time hereafter be used for any other purpose than as and for baths or an establishment for providing and administering any such baths or treatment as aforesaid or as a laundry used exclusively in connexion with such baths.

Fifthly That no telegraph telephone or other wires or posts for or supports to any telegraph or telephone or other wires and no building or other erection whatsoever shall at any time hereafter be stretched constructed set up or made over or upon any part of the said pieces of land coloured brown and green and edged and hatched brown as aforesaid so as to be above the surface thereof and that subject to all public rights of way (if any) the surfaces of the said last-mentioned pieces of land shall not nor shall the surface of any of them or any part or parts of them respectively be used for any other purpose than for access to the new pump room and the said baths and the various other buildings abutting thereon except so far as the erection and use of the verandah or covered way above referred to is concerned.

Sixthly That the surface of the said pieces of land coloured brown and green as aforesaid shall not nor shall any part or parts thereof be permitted to be otherwise than of gravel well and evenly rolled save and except any footpaths or walks thereon which may either be of gravel as aforesaid or of asphalt well and evenly laid and that no alteration of level or gradient of the said last-mentioned pieces of land or any footpaths roads ways or walks thereon shall be made at any time.

Seventhly That neither the said premises hereby conveyed nor any part or parts thereof nor any existing or future building thereon shall be used as or for a dwelling-house or for any residential purpose or as or for a concert room reading room winter garden or club or as or for assembly rooms or a museum or for offices or business premises or for the purpose of giving or providing any musical dramatic or other form of entertainment or for any purpose of recreation or amusement or as or for shops or kiosks or for the sale of any goods wares or merchandise whatsoever or for other trade purposes except as herein-before provided for and that no refreshments of any kind shall be sold upon the said premises.

Eighthly That no window shall at any time hereafter be made or enlarged in any building upon the said pieces of land expressed to be hereby conveyed which shall overlook any other land now belonging to the Duke without the permission in writing of the Duke his heirs or assigns the owner or owners for the time being of the land so overlooked.

Provided always that if and whenever the protected hereditaments or any part thereof shall be sold exchanged or leased by the Duke or any person

A.D. 1904. — or persons claiming through or under the Duke his heirs or devisees then the benefit of and right to enforce the said restrictive covenants and stipulations herein-before contained shall not pass to the purchaser purchasers grantees grantees lessee or lessees thereof by implication of law or equity or otherwise except and so far only as such benefit and right shall be expressly assigned.

Provided also that it shall be lawful for the Duke or for his executors or administrators or for his heirs devisees or assigns such heirs devisees or assigns being the owner or owners or tenant or tenants for life within the meaning of the Settled Land Acts 1882 to 1890 or a person or persons having the powers of a tenant for life under the said Acts of or over the protected hereditaments or such part or parts thereof as shall for the time being not have been sold exchanged or (save by way of settlement) otherwise conveyed away by any act inter vivos at any time to release vary waive or modify the said restrictive covenants and stipulations or any of them.

And it is hereby agreed and declared that the Council their successors and assigns shall not have the benefit of or right to enforce or have enforced or to prevent the release variation waiver or modification of any covenant or restrictive stipulation relating to any lands at or near Buxton aforesaid which has been already or may hereafter be entered into by any other purchaser or purchasers lessee or lessees from the Duke or from the late William Duke of Devonshire or any previous Duke of Devonshire.

And the Council hereby further covenant with the Duke his heirs executors administrators and assigns as follows (that is to say):—

Ninthly That the Council will henceforth pay unto the Duke his executors administrators and assigns the said yearly rentcharge for the period at the times and in the manner herein-before appointed for the payment thereof without any deduction or abatement whatsoever (except for property tax in respect only of such portion of any half-yearly payment as would properly represent interest on the said purchase money for the time being remaining unpaid) and will also pay all rates taxes tithes tithe rentcharge local or parliamentary charges or assessments and all other outgoings whatsoever charged assessed or payable upon or in respect of the said pieces of land and hereditaments expressed to be hereby conveyed and the buildings baths machinery and erections thereon whether already existing or hereafter to be imposed except property tax as aforesaid and also (by way of covenant and not of exception) any principal sum which may at any time become payable in respect of the said pieces of land hereditaments and premises in the event of the tithe rentcharge being redeemed.

Tenthly That the Council will from time to time and at all times well and substantially repair cleanse maintain amend and keep the existing buildings upon the said pieces of land hereby conveyed or any of them and all new or substituted buildings which may at any time be erected thereon and all additions to and alterations of the said existing and new and substituted buildings respectively and the walls vaults foundations and appurtenances thereof with all necessary reparations cleansings and amend-

ments whatsoever Provided always that there shall be excepted from this present covenant all buildings over or above the said piece of land coloured purple as aforesaid or any part thereof which are reserved out of or excepted from the conveyance hereby made and all additions to or alterations of such last-mentioned buildings and all new or substituted buildings over the said last-mentioned piece of land which shall be made or erected in exercise of any right or liberty hereby reserved but so far and so long only as the premises so expressed to be excepted from this present covenant shall respectively not be vested in or held in trust for the Council their successors or assigns and shall not be in their possession. A.D. 1901.

Eleventhly That the Council will at all times hereafter keep in good order repair and condition all the fixed and other baths boilers machinery laundry plant pipes tanks pumps valves cocks taps drains sewers machinery and fixtures in upon or about the premises hereby conveyed and will from time to time renew such part or parts thereof as may become worn out.

Twelfthly That the Council will at all times hereafter well and efficiently carry on the said baths and the mineral water undertaking of the Council in connexion therewith upon the pieces of land and hereditaments hereby conveyed and any adjoining lands and hereditaments which they may hereafter acquire from the Duke his heirs executors administrators or assigns for that purpose.

Thirteenthly That the Council their successors and assigns will permit the Duke and any person or persons entitled to or interested in the said rentcharge and his or their agent or agents at all reasonable times in the daytime to enter into and upon the said hereditaments and premises expressed to be hereby conveyed and any adjoining lands and hereditaments which the Council may hereafter acquire from the Duke his heirs executors administrators or assigns and which shall be used for the purposes of or in connexion with the said baths and every part thereof respectively and any buildings thereon to view the state of repair and condition thereof.

Fourteenthly That all buildings machinery and plant on the premises hereby conveyed or any part thereof shall be kept insured by the Council against fire to the full value thereof and if burnt or damaged by fire shall be forthwith rebuilt and reinstated by the Council at their own expense and that the receipts for the last premium upon every policy of insurance against fire shall from time to time be produced upon demand to the Duke his executors administrators or assigns the owner or owners of the said rentcharge or his or their agent.

Fifteenthly That the Council will at all times hereafter at their own expense keep the said pieces of land coloured brown and green as aforesaid in good repair and condition as an open space (except so far as the space to be occupied by the verandah or covered way above referred to is concerned) affording access to the new pump room and the various other buildings abutting thereon and will cause the said last-mentioned pieces of land to be kept cleansed and free from all obstructions and from all unsightly matters

A.D. 1904.

and substances of every kind and will use their best endeavours to restrict the use of the said pieces of land to pedestrian and light vehicular traffic only and to exclude therefrom as far as possible all heavy noisy or unsightly traffic and will if and so far as practicable make byelaws regulating the user of the said pieces of land in accordance with the provisions of this present covenant but without prejudice to the rights and liberties seventhly herein-before expressed to be reserved And also will at all times hereafter at their own expense keep the said pieces of land edged and hatched brown as aforesaid in good repair and condition as roads or streets affording access to the buildings abutting thereon and properly cleansed and lighted.

Sixteenthly That the Council will henceforth take over fulfil and indemnify the Duke his heirs executors and administrators against all liabilities and obligations whatsoever of the Duke his heirs executors or administrators under (1) an agreement dated the seventeenth day of June one thousand eight hundred and ninety-two and made between George Drewry as agent for the Duke of the one part and William Henry Robertson on behalf of the committee of management of the Devonshire Hospital at Buxton aforesaid of the other part and an agreement supplemental thereto dated the eleventh day of May one thousand nine hundred and four and made between Francis Drewry as agent for the Duke of the one part and William Stevenson on behalf of the said committee of management of the other part Provided that the liability of the Council to keep in good repair and working order the pipes referred to in the last-mentioned agreement shall extend only to such portions of the said pipes as are now or may from time to time be situate in under or upon any public highway or in under or upon any lands and hereditaments expressed to be hereby conveyed and any adjoining lands and hereditaments which the Council may hereafter acquire from the Duke his heirs executors administrators or assigns (2) clause 10 of the Buxton Local Board Act 1892 (3) the fourth and seventh paragraphs respectively of the agreement dated the first day of March one thousand eight hundred and ninety-two scheduled to the said Buxton Local Board Act 1892 and also against all other subsisting liabilities or obligations of the Duke in respect of or in connexion with the supply of mineral water at Buxton aforesaid from the premises hereby conveyed.

Seventeenthly That the Council will not convey away assign demise or let otherwise than by way of mortgage or charge the pieces of land and hereditaments hereby expressed to be hereby conveyed or any part or parts thereof without the consent in writing of the Duke his executors administrators or assigns owner or owners for the time being of the said rentcharge which consent it shall not be obligatory upon him or them to give except on such terms as he or they shall in his or their uncontrolled discretion think fit.

Provided always and these presents are executed on this express condition that if the Council their successors or assigns shall at any time make default in payment of the said yearly rentcharge for twenty-one days after the same or any part thereof shall have become due and payable whether demanded

A.D. 1904.

or not or shall at any time make default in performing or observing any of the covenants or stipulations (whether negative or affirmative) on their part to be performed or observed contained in these presents or in any assurance to the Council their successors or assigns of the pieces of land and hereditaments delineated on the said plan and thereon respectively coloured yellow and blue and edged and hatched yellow or of any of such pieces of land and hereditaments or of any part or parts of such pieces of land and hereditaments or any of them then and in any such case it shall be lawful for the Duke his executors administrators or assigns the owner or owners for the time being of the said rentcharge or any part thereof into and upon the hereditaments and premises herein-before conveyed and into and upon such part or parts of the said premises coloured yellow and blue and edged and hatched yellow as shall have been assured to the Council their successors or assigns or into or upon any part or parts thereof in the name of the whole to enter and to do thereon any act whatsoever which may be requisite specifically to perform or cause to be observed all or any of the covenants and stipulations on the part of the Council or their successors or assigns to be performed and observed contained in these presents or in any such assurance as aforesaid and to remain in possession and receive the rents and profits of the premises hereby conveyed and of the premises comprised in any such assurance as aforesaid or any part or parts thereof respectively until all the said covenants and stipulations shall have been duly performed and observed and any breach thereof made good and until the Council their successors or assigns shall have paid to the Duke his executors administrators or assigns all arrears of the said rentcharge and all costs charges and expenses properly incurred by him or them in or about the doing of any such act as aforesaid or occasioned by any such non-payment or breach of covenant as aforesaid together with interest thereon at the rate of five pounds per centum per annum or until the same shall have been satisfied out of the rents and profits of the premises.

Provided nevertheless that such right of entry and other powers and remedies aforesaid shall not be exercised or put into force by the Duke his executors administrators or assigns unless and until he or they shall have given to the Council their successors or assigns or left upon some part of the premises hereby assured notice in writing to make good such default and all costs damages and expenses incurred as aforesaid and the Council their successors or assigns shall fail so to do for one calendar month after such notice.

Provided always and it is hereby agreed that if at any time hereafter the flow of water from the mineral spring or springs by which the existing baths are now supplied with mineral water shall wholly cease for twelve consecutive calendar months or if during any twelve consecutive calendar months the average daily flow of water from such spring or springs between midnight and midnight shall not exceed twenty thousand gallons (either of which events shall constitute and be deemed a "failure of water" for the purposes of these presents) then it shall be lawful for the Council their

A.D. 1901.

successors and assigns to discontinue the use of the said lands and hereditaments hereby conveyed and any adjoining lands or hereditaments which they may hereafter acquire from the Duke his heirs executors administrators or assigns for the purposes of the said baths or any enlargement thereof as and for baths and a bathing establishment and the covenants by the Council thirdly fourthly seventhly eleventhly twelfthly and seventeenthly herein-before expressed and contained shall cease to be binding upon them their successors and assigns and upon the premises thereby respectively affected but as from the date of such failure of water these presents shall without prejudice to any right or remedy already accrued to the Duke his heirs executors administrators or assigns or any person or persons corporation or corporations claiming through or under him or them be read construed and have effect as if they had been executed with the additions and modifications herein-after mentioned (that is to say):—

First With the addition inserted in the place of the covenant by the Council seventhly herein-before expressed of a covenant expressed in the following terms (namely) that neither the said premises hereby conveyed nor any part or parts thereof nor any existing or future buildings thereon shall be used as a dwelling-house or for any residential or educational purpose or as a hospital or as or for a concert room reading room winter garden club assembly rooms or museum or as or for an inn or hotel or for the sale of any intoxicating liquors or for the trade of a butcher or for the sale of meat or fish or for the purpose of giving or providing any musical dramatic or other form of entertainment or for any purpose of recreation or amusement or for any noisy dangerous or offensive trade occupation process manufacture or business whatsoever or for any purpose which may be or grow to be a nuisance annoyance or damage to the occupiers of adjoining or neighbouring premises or otherwise than as and for shops and offices for carrying on handicrafts trades professions occupations or businesses of a quiet and inoffensive nature only.

Secondly With the addition of a proviso modifying the covenants by the Council first and secondly herein-before expressed and being in the following terms namely "Provided always and it is hereby agreed that notwithstanding the covenants by the Council first and secondly herein-before contained it shall be lawful for the Council their successors and assigns to make such alterations in any buildings standing on the said pieces of land respectively coloured pink and edged and hatched pink and coloured purple or any of them and on the said pieces of land respectively coloured yellow and edged and hatched yellow if the same respectively shall have been assented to the Council as may be reasonably necessary for adapting such buildings for use as shops or offices but so that no such alteration shall be made except in strict accordance with plans drawings elevations and specifications which before the commencement thereof shall have been approved in writing by the person or persons for the time being entitled to release the restrictive stipulations hereby imposed and no such alteration shall involve any increase in height of or external addition or erection above any such building or buildings or the construction of any chimney or chimneys therein."

[4 EDW. 7.] *Buxton Urban District Council* [Ch. ccxxiv.]
Act, 1904.

Thirdly With the omission from the covenants by the Council four- A.D. 1904.
teenthly herein-before expressed of the words "machinery and plant."

And it is hereby agreed and declared that the said rentcharge and all moneys payable by the Council under or by virtue of these presents or under or by virtue of any statute under or by virtue of which these presents may be or have been confirmed or be authorised or have validity and the costs and expenses of the performance and observance by the Council of the covenants on their part herein contained shall be charged upon and payable out of the district fund and general district rate of the urban district of Buxton in priority to all or any moneys charged on the said district fund and general district rate after the passing of the said Buxton Urban District Council Act 1904.

And it is hereby agreed and declared that any remedy for or in respect of the said rentcharge or any moneys payable by or any obligation binding on the Council given by these presents or by law or any statute and exerciseable against the Council or any property of the Council or against the premises expressed to be hereby conveyed or against the said district fund or general district rate or otherwise may be exercised or pursued either before after or at the same time as any other remedy is or has been exercised or pursued.

And the Duke for himself and his assigns and to the intent and so that this covenant shall be binding on the lands and hereditaments to which it relates into whosoever hands the same may come but not so as to render the Duke his heirs executors administrators or devisees or his or their estates or any of them liable in damages for any breach thereof doth hereby covenant with the Council in manner following (that is to say) that no excavation shall at any time hereafter be made in any part of the pieces of land coloured and edged round with orange upon the said plan the northern boundary of which said pieces of land is the southern bank of the River Wye except for the purpose of or purposes connected with or incidental to repairing rebuilding or draining the now existing buildings thereon or building repairing rebuilding or draining any new or substituted buildings on the same pieces of land or any of them or any part or parts of them and that no well shall be dug or sunk upon the said pieces of land or any of them and that no boring or similar search for water shall be made thereon and if any springs or streams of water shall be found or appear in or under the said pieces of land or any of them then no use whatever shall be made of such springs or streams or the water thereof by the owners or occupiers of the said pieces of land on which the same shall be found or appear but this covenant shall not subject as herein-after mentioned prevent such owners or occupiers taking such steps or using such means as they shall in their uncontrolled discretion think fit for confining any such springs or streams or waters underground or draining or conducting the same away from the said pieces of land by means of pipes or otherwise and discharging the same in whatever place or direction they shall from time to time find most convenient.

Provided that if any such springs or streams or waters shall be drained or conducted away from the said pieces of land coloured and edged round

A.D. 1904. — with orange and discharged as aforesaid the Council their successors or assigns shall so far as such owners or occupiers may have power to grant the same have permission and liberty to make use of such waters for the purposes of their baths and for such purposes to convey the same from the point on the boundary of the said pieces of land where the same may be so discharged to the baths at their own expense. Provided and it is hereby declared that the Council shall not be at liberty to convey away any of such waters from the point where the same may be discharged as aforesaid by means of any pumps or other appliances so as in any way to increase the flow or discharge of the said waters from the said lands beyond the extent to which the same would be discharged by natural gravitation.

Provided also that if any such waters shall be made use of by the Council their successors or assigns for the purposes aforesaid they shall repay to such owners or occupiers as aforesaid such expenses as may have been incurred by such owners or occupiers or any of them in draining or conducting away and discharging any such waters from the said pieces of land and the Council their successors or assigns shall also on demand repay to such owners and occupiers all such costs or expenses as may from time to time be incurred by such owners or occupiers or any of them in renewing repairing and maintaining the works by means of which such water may from time to time be drained conducted away and discharged as aforesaid.

Provided always and it is hereby agreed and declared that the last preceding covenant shall not be deemed to bind the existing interests of the present lessees or tenants of the said pieces of land.

And further that the Council shall have no right or remedy whatsoever against the Duke his heirs executors administrators or devisees in respect of any breach of the said covenant which shall occur after he or they shall have parted with the possession of the premises in respect whereof such breach shall occur and further that the Council shall have no remedy whatever against the Duke his heirs executors administrators or devisees or his or their estates or any of them in respect of any breach of the said covenant occurring before he or they shall have parted with the possession of the premises in respect whereof such breach shall occur except by way of restraint by injunction only.

Provided always that the covenant by the Duke relating to the said pieces of land coloured and edged round with orange as aforesaid and the restrictions hereby imposed upon the same pieces of land and the owner or owners thereof shall become void and cease after there shall have been the occurrence of such a failure of water as herein-before mentioned and the Council their successors or assigns shall in consequence thereof have discontinued the use of the said lands and hereditaments hereby conveyed or any part thereof as and for baths and a bathing establishment.

Provided always and it is hereby agreed that notwithstanding anything herein expressed or implied or hereby effected it shall be lawful for the Duke his heirs and assigns without incurring any liability whatsoever to the Council their successors or assigns (but subject as to the said premises coloured and edged round with orange as aforesaid to the covenant relating thereto herein-before expressed) henceforth to deal with all or any lands buildings or

hereditaments now belonging to the Duke in or about Buxton aforesaid and not included in the conveyance hereby made in all respects as he or they shall in their uncontrolled discretion think fit and in particular in or upon any such lands or hereditaments (subject as aforesaid) the Duke his heirs or assigns and his and their lessees and tenants shall be at liberty to dig foundations for any new buildings and renew or underpin the foundations of any present or future buildings belonging to him or them and build or rebuild or alter any buildings whatsoever whether new or old and notwithstanding that any such digging renewal underpinning building rebuilding or alterations or any excavations or operations in connexion therewith shall take place near the said springs of mineral water or any other springs or waters.

A.D. 1904.

Provided always and it is hereby agreed and declared that nothing herein expressed or implied or hereby effected shall affect the provisions contained in an agreement dated the first day of March one thousand eight hundred and ninety-two and made between the Duke of the one part and the local board for the district of Buxton in the county of Derby of the other part or in the Buxton Local Board Act 1892 or in an indenture dated the thirteenth day of June one thousand eight hundred and ninety-four and made between the Duke of the one part and the said local board of the other part whereby provision is made for the reverter to the Duke of the new pump room and site thereof in the event of the said new pump room remaining for three consecutive years unused for the purpose of supplying water to the inhabitants of the district and the public as in the said agreement mentioned.

In witness whereof the Duke hath hereunto set his hand and seal and the Council have caused their common seal to be hereunto affixed the day and year first before written.

Signed sealed and delivered by the above-named Spencer Compton Duke of Devonshire in the presence of

F. ALFRED CURREY

14 Great George Street

Westminster

Solicitor

J. H. FIELD

Clerk to Messrs. Currey & Co.

14 Great George Street

Westminster

Solicitors

DEVONSHIRE

L.S.

Sealed with the common seal of the urban district council of Buxton and signed by Abram Brown the chairman in the presence of

JOSIAH TAYLOR

Clerk to the said Council

Seal of the
Buxton
Urban District
Council.

ABM. BROWN

Chairman.

A.D. 1904.

SECOND SCHEDULE.

AN AGREEMENT made the seventeenth day of June one thousand eight hundred and ninety-two between GEORGE DREWRY as agent for and on behalf of THE MOST NOBLE SPENCER COMPTON DUKE OF DEVONSHIRE (herein-after called "the Duke") of the one part and WILLIAM HENRY ROBERTSON of Buxton in the county of Derby Doctor of Medicine on behalf of the Committee of Management of the Devonshire Hospital at Buxton in the county of Derby (herein-after called "the Committee") of the other part whereby it is mutually agreed as follows :—

WHEREAS the Committee have been for many years the tenants of the Duke and his predecessor in title of the hospital natural bath situate at Buxton in the yard between the Old Hall Hotel and the Square and partially underground at a rental of five shillings per annum And whereas on or about the first day of June one thousand eight hundred and seventy-eight an agreement was made by the said George Drewry on behalf of His Grace the late Duke of Devonshire and the Committee that if the said Duke should at any time require the said natural bath he would give to the Committee a certain piece of land at Buxton shown upon the plan hereunto annexed and signed by the parties hereto and thereon coloured as to part thereof with a pink colour and as to the remainder thereof with a brown colour and the sum of five hundred pounds towards the expense of making new baths and also give to the Committee a supply of mineral water And whereas the Duke and the Committee have agreed to exchange that portion of the land referred to in the last-recited agreement which is coloured brown on the said plan for another piece of land near or adjoining thereto which last-mentioned piece of land is coloured green upon the said plan :

Now it is hereby agreed as follows :—

- (1) The Duke agrees to let and the Committee to take the said hospital natural bath at the annual rent of five shillings payable on the twenty-ninth day of September in every year :
- (2) The tenancy of the said bath shall be determinable by either party at Michaelmas in any year by not less than twelve calendar months' previous notice in writing :
- (3) On the determination of the tenancy of the said natural bath the Committee shall give up to the Duke possession of the said natural bath and any buildings for the time being standing on the site thereof but they shall be at liberty to remove any tenant's fixtures therefrom :
- (4) If the said tenancy of the said bath shall be determined at any time by the Duke (but not otherwise) he shall give and convey to the Committee or as they shall direct free from expense for the purposes of the said Devonshire Hospital the pieces of land coloured green and pink on the said plan hereto annexed and

containing one hundred and twenty square yards or thereabouts and shall also pay to the Committee the sum of five hundred pounds to be expended in the construction of a new bath or baths on the last-mentioned piece of land. Provided always and it is hereby expressly agreed that if the said tenancy of the said bath shall be determined by the Committee the Duke shall not be liable to give or convey to the Committee or as they shall direct the said land coloured pink and green on the said plan or to pay to the Committee the said sum of five hundred pounds:

A.D. 1904.

- (5) The Duke shall give to the Committee for the purposes of the hospital natural baths the overflow natural mineral water from the baths now used as the gentlemen's two-shilling baths and the baths now used as the ladies' large baths from six o'clock in the afternoon until midnight daily.

Lastly the agreement herein-before contained shall be deemed to be in substitution for the herein-before recited agreement of the first day of June one thousand eight hundred and seventy-eight and the Committee release the Duke from any claim they may have upon or in respect of that portion of the piece of land referred to in the said recited agreement which is coloured brown on the said plan hereto annexed.

As witness the hands of the parties:—

Witness to the signature of the said

William Henry Robertson—

JOSEPH TAYLOR

Secretary to the Devonshire
Hospital Buxton

W. H. ROBERTSON.

Witness to the signature of the said

George Drewry—

JNO. W. WARDLEY

Devonshire Offices Buxton

G. DREWRY.

AGREEMENT made the eleventh day of May one thousand nine hundred and four between FRANCIS DREWRY as agent for and on behalf of THE MOST NOBLE SPENCER COMPTON DUKE OF DEVONSHIRE (herein-after called "the Duke") of the one part and WILLIAM STEVENSON on behalf of the Committee of Management of the Devonshire Hospital at Buxton in the county of Derby (herein-after called "the Committee") of the other part Supplemental to an agreement dated the seventeenth day of June one thousand eight hundred and ninety-two made between George Drewry on behalf of the Duke of the one part and William Henry Robertson on behalf of the Committee of the other part. §

WHEREAS the overflow natural mineral water from the gentlemen's and ladies' baths mentioned in clause 5 of the said agreement of the seventeenth

A.D. 1904. — day of June one thousand eight hundred and ninety-two has never been used as the supply to the hospital natural bath And whereas it was the true intention of the parties to the said agreement that the Duke should give to the Committee a continuance of the supply of drinking water to the hospital drinking well and of mineral water for the hot and natural baths belonging to the hospital in the manner in which it had been given for many years prior to the date of the said agreement And whereas the overflow from the gentlemen's and ladies' baths mentioned in clause 5 of the said agreement is now and has for many years past been given for the purposes of the hospital hot baths and is supplied by means of a pipe running in front of the house now occupied by Mr. William Louis Shipton along the side of George Street into tanks under the drinking well and engine room adjoining the hospital hot baths and the drinking water for the hospital drinking well is supplied from a tank near the shop adjoining the St. Ann's Hotel now used as a gentlemen's hairdressers' shop and is conveyed therefrom to the drinking well through a small pipe inside the pipe last before mentioned and the mineral water for the hospital natural bath is supplied from the springs underneath the gentlemen's two-shilling bath and is conveyed by a pipe underneath the last-mentioned bath to the hospital bath :

Now it is hereby agreed as follows :—

- (1) The Duke shall give to the Committee by means of the existing pipes or any renewals of such pipes or by any pipes that may be substituted for the existing pipes or any renewals thereof for the purposes of the hospital hot baths the overflow natural mineral water from the bath now used as the gentlemen's two-shilling bath and the bath now used as the ladies' large bath from six o'clock in the forenoon until midnight daily :
- (2) The Duke shall give to the Committee by means of the existing pipes or any renewals of such pipes or by any pipes that may be substituted for the existing pipes or any renewals thereof for the purposes of the hospital natural bath a full and sufficient supply of natural mineral water from the springs underneath the said gentlemen's two-shilling bath :
- (3) The Duke shall give to the Committee by means of the existing pipes or any renewals of such pipes or by any pipes that may be substituted for the existing pipes or any renewals thereof for the purposes of the hospital drinking well a full and sufficient supply of natural mineral drinking water from the springs near the shop now used as a gentlemen's hairdressers' shop :
- (4) In case there is any question of the sufficiency of supply of water from the springs referred to in clauses 2 and 3 respectively the Committee shall only be entitled to a supply to the extent of one-eighth of the total quantity for the time being obtained by the Duke from the said springs respectively :

- (5) The Duke will keep in good repair and working order the pipes by which the overflow natural mineral water from the bath now used as the gentlemen's two-shilling bath and the bath now used as the ladies' large bath is conveyed to the hospital hot baths and all pipes that may be substituted for the existing pipes and all renewals of the said pipes : A.D. 1904.
- (6) The Duke will keep in good repair and working order the pipes by which the natural mineral water from the springs underneath the gentlemen's two-shilling bath is conveyed to the hospital natural bath and all pipes that may be substituted for the existing pipes and all renewals of the said pipes :
- (7) The Duke will keep in good repair and working order the pipes by which the natural mineral drinking water is conveyed from the springs near the said shop to the hospital drinking well and all pipes which may be substituted for the existing pipes and all renewals of the said pipes :
- (8) The Committee will upon demand repay to the Duke all the costs and expenses of renewing and keeping the said pipes in good repair and condition as herein-before provided :
- (9) And this agreement shall be deemed to be in substitution for clause 5 of the said agreement of the seventeenth day of June one thousand eight hundred and ninety-two.

As witness the hands of the parties.

Original executed thus :—

Witness to the signature of the said	}	F. DREWRY.
Francis Drewry		
ERNEST C. BROWN		
Clerk in Devonshire Estate		
Office Buxton.		

Duplicate :—

Witness to the signature of the said	}	WILLIAM STEVENSON.
William Stevenson		
WALTER PEARSON		
Clerk Devonshire Hospital		
Buxton.		

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C. ; or
OLIVER AND BOYD, EDINBURGH ; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN